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As INTRODUCED IN LOK SABHA ON

8 April 1986

**Bill No. 95 of 1986**

**THE CONSTITUTION (FIFTY-FOURTH AMENDMENT) BILL, 1986**

**BILL**

*further to amend the Constitution of India.*

Be it enacted by Parliament in the Thirty-seventh Year of the Republic of India as follows:—

- |    |                                                                                                                                                                                                                              |                               |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| 1  | 1. This Act may be called the Constitution (Fifty-Fourth Amendment) Act, 1986.                                                                                                                                               | Short title.                  |
| 5  | 2. In article 125 of the Constitution, for clause (1), the following clause shall be substituted, namely:—                                                                                                                   | Amendment of article 125.     |
| 10 | “(1) There shall be paid to the Judges of the Supreme Court such salaries as may be determined by Parliament by law and, until provision in that behalf is so made, such salaries as are specified in the Second Schedule.”. |                               |
| 15 | 3. In article 221 of the Constitution, for clause (1), the following clause shall be substituted, namely:—                                                                                                                   | Amendment of article 221.     |
| 20 | “(1) There shall be paid to the Judges of each High Court such salaries as may be determined by Parliament by law and, until provision in that behalf is so made, such salaries as are specified in the Second Schedule.”.   |                               |
| 25 | 4. In the Second Schedule to the Constitution, in Part D,—                                                                                                                                                                   | Amendment of Second Schedule. |
|    | (a) in sub-paragraph (1) of paragraph 9,—                                                                                                                                                                                    |                               |
|    | (i) for the figures and word “5,000 rupees”, the figures and word “10,000 rupees” shall be substituted;                                                                                                                      |                               |
|    | (ii) for the figures and word “4,000 rupees”, the figures and word “9,000 rupees” shall be substituted;                                                                                                                      |                               |
|    | (b) in sub-paragraph (1) of paragraph 10,—                                                                                                                                                                                   |                               |
|    | (i) for the figures and word “4,000 rupees”, the figures and word “9,000 rupees” shall be substituted;                                                                                                                       |                               |
|    | (ii) for the figures and word “3,500 rupees”, the figures and word “8,000 rupees” shall be substituted.                                                                                                                      |                               |

## STATEMENT OF OBJECTS AND REASONS

The salaries of Judges of the Supreme Court and the High Courts are governed by the provisions of Part D of the Second Schedule to the Constitution of India as indicated below:

|                               |                     |
|-------------------------------|---------------------|
| Chief Justice of India        | Rs. 5,000 per month |
| Judges of the Supreme Court   | Rs. 4,000 per month |
| Chief Justice of a High Court | Rs. 4,000 per month |
| Judges of a High Court        | Rs. 3,500 per month |

2. These salaries have remained static since 1950, despite high inflation and price rise that has taken place during all these years. The Joint Conference of Chief Justices, Chief Ministers and Law Ministers of the States held on 31st August and 1st September, 1985, *inter alia*, discussed and recommended improvement in service conditions of Judges including increase in their salaries, not only to minimise the inflationary pressures on them but also to attract best talents in the country to man the judicial posts.

3. Having considered all aspects of the matter, it is proposed to increase the salaries of the Judges as detailed below:

|                               |                      |
|-------------------------------|----------------------|
| Chief Justice of India        | Rs. 10,000 per month |
| Judges of the Supreme Court   | Rs. 9,000 per month  |
| Chief Justice of a High Court | Rs. 9,000 per month  |
| Judges of a High Court        | Rs. 8,000 per month  |

4. This Bill seeks to amend Part D of the Second Schedule to the Constitution to give effect to the above increases in the salaries of Judges and to make an enabling provision in articles 125 and 221 to provide for changes in the salaries of Judges in future by Parliament by law.

NEW DELHI;  
The 4th August, 1986.

A. K. SEN.

## FINANCIAL MEMORANDUM

Clause 2 of the Bill seeks to amend article 125 of the Constitution to make an enabling provision to provide for the changes in the salaries of Supreme Court Judges in future by parliamentary law. Similarly, clause 3 of the Bill seeks to amend article 221 of the Constitution to make an enabling provision to provide for the changes in the salaries of High Court Judges in future by parliamentary law. Clause 4 of the Bill seeks to amend the Second Schedule to the Constitution to enhance the salary of the Chief Justice of India from Rs. 5,000 per month to Rs. 10,000 per month and that of other Judges of the Supreme Court/Chief Justices of the High Courts from Rs. 4,000 per month to Rs. 9,000 per month and the Judges of the High Court from Rs. 3,500 per month to Rs. 8,000 per month.

2. The additional expenditure that is likely to be incurred in view of the above increases in respect of the Judges of the Supreme Court and the Delhi High Court will be charged on the Consolidated Fund of India. In respect of Judges of the other High Courts, this expenditure will be a charge on the Consolidated Fund of the respective States. The sanctioned strength of the Judges of the Supreme Court and the Delhi High Court is at present 26 and 27, respectively. Apart from their salary as fixed in Part D of the Second Schedule to the Constitution, the Judges are entitled to dearness allowance, additional dearness allowance and interim relief as admissible to members of the All-India Services. On this basis, the present total monthly emoluments drawn by the Chief Justice of India, Judges of the Supreme Court/Chief Justices of the High Courts and the Judges of the High Courts are Rs. 8,150.00, Rs. 7,050.00 and Rs. 6,500.00, respectively. The actual additional recurring expenditure that is therefore likely to be incurred from the Consolidated Fund of India in so far as it relates to the Supreme Court and the Delhi High Court will be of the order of Rs. 10,98,600.00 per annum.

3. No other expenditure, either recurring or non-recurring, is likely to be incurred.

## ANNEXURE

### EXTRACTS FROM THE CONSTITUTION OF INDIA

Salaries,  
etc., of  
Judges.

125. (1) There shall be paid to the Judges of the Supreme Court such salaries as are specified in the Second Schedule.

Salaries,  
etc., of  
Judges.

221. (1) There shall be paid to the Judges of each High Court such salaries as are specified in the Second Schedule.

### SECOND SCHEDULE

[Articles 59(3), 65(3), 75(6), 97, 125, 148(3), 158(3), 164(5), 186 and 221]

### PART D

#### PROVISIONS AS TO THE JUDGES OF THE SUPREME COURT AND OF THE HIGH COURTS

9. (1) There shall be paid to the Judges of the Supreme Court in respect of time spent on actual service, salary at the following rates per mensem, that is to say:—

|                   |                  |
|-------------------|------------------|
| The Chief Justice | .. 5,000 rupees. |
| Any other Judge   | .. 4,000 rupees: |

Provided that if a Judge of the Supreme Court at the time of his appointment is in receipt of a pension (other than a disability or wound pension) in respect of any previous service under the Government of India or any of its predecessor Governments or under the Government of a State or any of its predecessor Governments, his salary in respect of service in the Supreme Court shall be reduced—

(a) by the amount of that pension, and

(b) if he has, before such appointment, received in lieu of a portion of the pension due to him in respect of such previous service the commuted value thereof, by the amount of that portion of the pension, and

(c) if he has, before such appointment, received a retirement gratuity in respect of such previous service, by the pension equivalent of that gratuity.

10. (1) There shall be paid to the Judges of High Courts, in respect of time spent on actual service, salary at the following rates per mensem, that is to say,—

|                   |                  |
|-------------------|------------------|
| The Chief Justice | 4,000 rupees.    |
| Any other Judge   | .. 3,500 rupees: |

Provided that if a Judge of a High Court at the time of his appointment is in receipt of a pension (other than a disability or wound pension)

in respect of any previous service under the Government of India or any of its predecessor Governments or under the Government of a State or any of its predecessor Governments, his salary in respect of service in the High Court shall be reduced—

(a) by the amount of that pension, and

(b) if he has, before such appointment, received in lieu of a portion of the pension due to him in respect of such previous service the commuted value thereof, by the amount of that portion of the pension, and

(c) if he has, before such appointment, received a retirement gratuity in respect of such previous service, by the pension equivalent of that gratuity.

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further to amend the Constitution of India.

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(*Shri Asoke Kumar Sen,*  
*Minister of Law and Justice.*)